

Principles of personal data processing

of MCOMM 24 s.r.o.

I. BASIC PROVISIONS

1.1 What does this policy govern?

These policies contain information on the scope and conditions of the processing of your personal data, which we carry out as part of the performance of our business activity or in connection with it, in particular when providing services, operating our website and mobile application, when communicating with you, etc.

1.2 Who is the administrator of my personal data?

Your personal data is managed by us, the trading company

MCOMM 24 s.r.o.,

ID: 44793294,

with registered office at Na strži 1702/ 65, Nusle, 140 00 Prague 4,

registered in the commercial register kept at the Municipal Court in Prague, section C, insert 6907.

We are also the operator of the AUCTION24 website and mobile application.

Below are our contact details:

Phone: +420 212 246 451

Email: info@auction24.cz

Address: Na strži 1702/64, Nusle, 140 00 Prague 4, Czech Republic

You can find our other contact details on the website www.auction24.cz in the Contacts section.

1.3 Why do you process my personal data?

We process your personal data so that we can

- to negotiate with you about the conclusion of contracts;
- to enter into contracts with you;
- to provide you with the services you order from us;
- recognize your payment of the price of services, or other payments;
- deal with your possible complaints;
- operate and improve our website www.auction24.cz;
- set up and operate your user accounts if you use the registration option on the www.auction24.cz website;

- deal with your possible questions or comments about the services we offer;
- deal with any complaints you may have about our company;
- possibly enforce our legal claims, especially from the contracts we conclude with you, if you do not fulfill your obligations to us from these contracts;
- solve any disputes, whether judicial or extrajudicial, that may arise between you and us, whether from concluded contracts, when using the website www.auction24.cz or for other reasons;
- to contact you for the purpose of marketing, in particular to send you our business communications (newsletters), especially about the services or goods we offer, news in our range, discounts, interesting events and other interesting things related to our company's activities;
- create statistics about our business activity, about the number of visitors to our website, or about the use of our other services;
- promote our company and its activities
- properly manage our business administration and accounting and fulfill our tax obligations;
- archive our documentation.

1.4 What personal data do you process?

We process for the above purposes

- a) Your identification data, in particular your name, surname, date of birth, ID number, VAT number, residential address, registered address (if you are a natural person), position within the legal entity that you may represent, or Your relationship to this legal entity, your website address if you provide it in your user account;
- b)Your contact information, especially the delivery or other contact address you provide us, telephone number (landline, mobile), e-mail address, fax;
- c)Your payment information, in particular bank account number, payment card number, variable symbol, possibly even a specific symbol, sender's or recipient's note, or other information that you provide in the payment;
- d)data about your orders, especially about the services you ordered;
- e) network data that we obtain when you access our website and mobile application when using it, in particular your IP address, MAC address of the device through which you use the site, data about your access to the site, activity on the site, duration of your visit on the website, cookies, location data of the device through which you use the website; to process some of this information, we use the Google Analytics tool, thanks to which we obtain statistical data about the use of our site and its users;
- f)Your access data to the user account, i.e. login name (registered e-mail) and your password;
- g) data about you from the website www.facebook.com or Your Facebook profile if you log into your user account via your Facebook profile.
- h) data contained in your communication carried out through the chat implemented on our website;
- i)data about you and about the goods advertised by you listed in your advertisements published on our website;
- j)data contained in your advertisements on the websites of third parties, which we import on our website for you based on your request.
- k)Your appearance or the appearance of third parties, if it is captured in photos that you publish in your ads or in your profile photo;

1.5 Are you processing all my personal data for all the purposes you mentioned?

Nope. We process personal data in accordance with the principle of data minimization and purposeful limitation. This means that we process your personal data only for the purposes for which it is necessary, and only to the extent necessary to fulfill the given purpose.

1.6 What authorizes you to process my personal data?

We process your personal data on the basis of the reasons established by legal regulations, in particular the general regulation on the protection of personal data, the so-called GDPR (full name Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016 on the protection of natural persons in connection with the processing of personal data and on the free movement of such data and on the repeal of Directive 95/46/EC (General Regulation on the Protection of Personal Data), as amended.

We always process your personal data in accordance with the GDPR on the basis of one of the legal reasons set out in Article 6 of the GDPR. These reasons are mainly:

- a) Your consent to the processing of your personal data;
- b) the necessity of processing your personal data to fulfill the contract you concluded with us, or to implement measures taken before concluding the contract;
- c) the existence of our legitimate interest in processing your personal data;
- d) the necessity of processing your personal data to fulfill our obligations.

1.7 What are your legitimate interests in the processing of my personal data?

Our legitimate interests in processing your personal data are:

- a) operating and developing our business activity;
- b) improving the quality of the services we provide;
- c) operating our website and mobile application, ensuring and improving their functionality;
- d) promotion of our business activity, especially the services, discounts, events and other points of interest related to our company's activities offered by us;
- e) enforcing our legal claims;
- f) ensuring the security of our website, its users and their user accounts;
- g) protection of our property, protection of life, health and property of our employees, business partners, clients;

1.8 How long do you process my personal data?

This depends on the purpose and reason for which we process the given personal data. This time, taking into account the scope of the processed data and the variety of purposes, usually cannot be determined precisely. Therefore, the processing time of your personal data is defined by the criteria below.

If we process your personal data based on your consent to their processing, then we process your personal data for the duration of this consent.

In other cases, we process your personal data for the time necessary to achieve the purpose for which we process them, including the subsequent administration associated with the termination of processing and deletion of personal data.

If one of the reasons on the basis of which we process your personal data for a certain purpose ceases to exist, this does not automatically mean our obligation to stop processing them. As long as we have another reason for processing them (e.g. our legitimate interest in processing ceases, but the processing of your personal data will still be necessary in order to be able to fulfill the contract concluded between us or our legal obligations), we can continue to process your personal data until we no longer have any legal grounds for processing them. However, in the case of withdrawal of consent to the processing of personal data, we will no longer continue processing your personal data for the purpose for which the revoked consent was originally granted.

1.9 From whom do you obtain my personal data and to whom do you pass it on?

We mainly process the personal data that you provide us yourself, and we mainly process them ourselves for our purposes.

In certain cases, however, it may happen that we receive your personal data from third parties or pass them on to third parties. These persons may in particular be:

- our accountants and tax advisors;
- our lawyers;
- our business partners;
- our IT administrators;
- persons involved in the processing of your order, delivery of ordered services and payment of the price for them, i.e., e.g. payment service providers (banks, operators of payment cards and payment gateways, etc.);
- persons participating in the operation of our website, i.e. in particular
- co. Google LLC, with headquarters at 1600 Amphitheater Parkway, Mountain View, California, U.S.A., whose tools, in particular Google Analytics and Google Translator, we use on our website, and whose Firebase platform operates the chat implemented on our website;
- providers of data storage and cloud services;
- persons who provide us with marketing and PR services;
- public authorities (especially courts, authorities);
- law enforcement agencies (especially the police and the public prosecutor's office).

We may also obtain your personal data from publicly accessible sources, such as public registers (especially the commercial register), the trade register, the insolvency register or the real estate cadastre.

1.10 Do I have to provide you with my personal data?

In some cases, the provision of personal data is necessary so that we can comply with our contractual or other obligations, fulfill our legitimate interests, etc. For example, in order to be able to enter into a contract with you and provide you with services, we need to know your identification and contact details in particular. If possible, we try to inform you in

advance about which data must be provided (e.g. with an asterisk in the forms on the website).

II. RIGHTS RELATED TO THE PROCESSING OF PERSONAL DATA

2.1 How do I get information about the processing of my personal data?

Upon your written request, we will provide you with information on the scope and conditions of processing your personal data. In addition to this request, you can request a copy of your personal data that we process in the same way.

We will respond to requests in the same way you submit them (i.e. either electronically or in paper form), unless you ask us to provide a response in a different way in your request.

If you request multiple copies of your personal data in paper form, we will charge you an administrative fee of CZK 30 for each copy beyond one.

2.2 What can I do if I discover an error in my personal data that you are processing?

In this case, send us a request to correct your personal data, in which you state what the error is and what the correct data is. If there is an error in the data maintained in your user account, then you can correct this error yourself after logging into your account.

2.3 What can I do if I find out that my personal data that you are processing is incomplete?

In this case, send us a request to supplement your personal data, in which you indicate how your personal data that we process should be supplemented and for what purpose. However, we would like to point out that if the data that you want to add to the already processed personal data is not necessary for the processing for the purpose you requested, we are not obliged to add the data. You can also complete the data kept within your user account yourself after logging in to your account.

2.4 What can I do if I discover that you are processing my personal data to a greater extent than is necessary?

As we have already stated above, we process your personal data only for the purposes for which it is necessary, and only to the extent necessary to fulfill the given purpose. If you should nevertheless discover that we are processing more of your personal data than is necessary for any of the purposes, you can send us a written request to restrict processing. In your request, please inform us of the reasons for which you believe that we are processing more of your personal data than is necessary for the given purpose. We will carefully evaluate your request and, if we find it reasonable, we will take measures to limit the scope of processing. You can also edit the range of data stored within your user account as far as data that is not necessary for account management is concerned after logging in to your account.

2.5 What can I do if I do not want you to keep my personal data?

In this case, send us a written request to delete your personal data. We will carefully examine the request and if we find it reasonable, we will delete your personal data. The reasons for which you can request the deletion of your personal data can be found in Article 17 of the GDPR. In certain cases, however, we may not comply with your otherwise reasonable request. You can also find which cases are involved in Article 17 of the GDPR (e.g. if the processing is necessary for the exercise of the right to freedom of expression and information).

2.6 Can I transfer my personal data that you process to another controller?

Upon your written request, we will provide you with your personal data in a machine-readable format, or, if you ask us to do so, we will directly provide it to another administrator whom you specify for this purpose in the request. However, please note that this right only applies to your personal data that we process for the purpose of fulfilling the contract concluded between you and our company, and only if we process it in automated form.

2.7 What can I do if I don't like how you process my personal data?

If we process your personal data due to our legitimate interest, you can object to such processing in writing. In response to your objection, we will assess whether our legitimate interest in such processing persists and whether it is not outweighed by the interest in protecting the rights and freedoms of natural persons. If we find your objection justified, we will stop processing your personal data to which you have raised an objection.

The supervisory authority in the field of personal data processing in the Czech Republic, to which complaints against the processing of personal data can be submitted, is the Office for the Protection of Personal Data, based in Plk. Sochora 27, 170 00 Prague 7.

III. CONSENT TO THE PROCESSING OF PERSONAL DATA

3.1 When do you need my consent to the processing of my personal data?

We require consent to the processing of your personal data only in those cases where we cannot process your personal data for the given purpose on the basis of any other legal reason. We therefore only ask for your consent in exceptional cases, e.g. for the purpose of sending commercial messages, creating and operating user accounts.

3.2 Do I have to give you consent?

Granting consent is completely voluntary and you can withdraw your consent at any time. In particular, the granting of consent is not a condition for the provision of other services.

3.3 How can I revoke the given consent?

If you want to withdraw your consent to the processing of your personal data, send an e-mail or letter to the above contact details. Consent granted for the purpose of sending

commercial communications can also be revoked by unsubscribing from their subscription via a link placed in the e-mail that contains the commercial communications.

3.4 Can I be sent commercial messages even without my consent?

If you have provided us with your e-mail address in connection with the sale of products offered by us or the provision of our services, we may, in accordance with the Act on Certain Information Society Services (Act No. 480/2004 Coll.), send you commercial messages even without you giving us your consent. In this case, we process your e-mail address based on our legitimate interest. This is our interest in promoting our business activity, especially the services we offer, discount events, other events related to our company.

However, you can object to this processing (for more information on the right to object, see section 2.7). At the same time, you have the option to unsubscribe from receiving commercial communications by clicking on the relevant link in each e-mail that contains commercial communications. If we receive your objection to sending business communications or unsubscribe from their subscription, we will no longer send you business communications to the given e-mail address.

IV. REGISTRATION ON THE WEBSITE OR APPLICATION, USER ACCOUNT

4.1 How do I create a user account?

You can get a user account by registering on our website or registering via our mobile application. In order to register, you must complete and submit the registration form. Information marked with an asterisk must be filled in the registration form in order for the registration to be completed and for the user account to serve its purpose.

Before submitting the registration form, you must check the box stating that you agree to the processing of your personal data for the purpose of establishing and operating your user account. We process your personal data for the purpose of establishing and operating user accounts on the basis of your consent, which you give us by checking the box in the registration form and sending the registration form.

4.2 How do I log in to my user account?

You will log in to your user account using your login name, which will be the email address you provided in the registration form, and your chosen password. Logging in is also possible by logging into your Facebook account.

4.3 What measures must be followed to secure the user account?

Your personal data is collected in the user account. It is therefore necessary for you to be aware of the risks resulting from possible unauthorized access by third parties to your user account, especially the risks associated with possible misuse of your user accounts and personal data collected in them.

As the operator of the website www.auction24.cz, we ensure the highest possible level of security, and therefore also the security of your user accounts and your personal data collected in them. However, without you also taking the necessary measures to secure your user accounts and your personal data, any security efforts on our part are useless.

First of all, it is necessary that you do not share your user account login information, especially your password, with anyone.

When choosing a password, it is important to remember that weak (simple) passwords can be easily cracked by third parties (hackers), either by using specialized password cracking tools or simply by simple guesswork or guesswork. Therefore, it is crucial that you choose a sufficiently strong (complex) password that cannot be easily cracked by third parties. In this context, we recommend that you choose a password containing at least 6 characters, of which at least 1 uppercase letter, 1 lowercase letter and 1 Arabic numeral. By adding other different characters (e.g. punctuation marks or other characters, e.g. asterisks, or other characters, such as for example zaináce), you will increase the strength of the password even more.

Furthermore, it is necessary that you always log out of your user account immediately after you finish working with the user account. Otherwise, you allow a third person who gets to the computer on which you worked with the user account to easily misuse your account and your personal data.

We therefore ask you to observe all necessary measures to secure your user accounts and your personal data collected in them. The above examples can be a guide for you, but it is not an exhaustive list of the measures you should follow.

Please remember that you are solely responsible for the misuse of your user accounts or the data collected in them, which is caused by your error.

4.4 How can I cancel my user account?

You can cancel your user account after logging in and then clicking on the "CANCEL PROFILE" field. This will automatically cancel your user account, including all its content. Please note that the cancellation of a user account cannot be taken back and does not entitle you to a refund of any payments made.

We can also cancel the user account at your written request. In this case, we will cancel your user account without undue delay after receiving the request. Send your request electronically (by e-mail) to the e-mail address info@auction24.cz, or by letter to the address Na strži 1702/ 65, Nusle, 140 00 Prague 4, Czech Republic.

Account cancellation or a request for its cancellation will also be considered a revocation of the consent to the processing of your personal data, which you have given us for the purpose of establishing and operating your user account.

If you use a Facebook profile to log in to your user account on the www.auction24.cz website and decide to cancel your user account, your Facebook profile will not be cancelled.

4.5 Can you also cancel my user account?

Yes, we can cancel your user account ourselves, without your request, but only if:

- a) you do not log into the user account for a period longer than 12 (twelve) months;
- b) you do not sufficiently secure your user account, you violate your obligations under the contract concluded with our company, you violate your obligations from the Terms of Business or the Personal Data Processing Policy of our company, especially if you violate obligations in relation to user account security and protection personal data stored in it.

V. FINAL PROVISIONS

5.1 Can these policies be changed? And where can I find their current version?

This privacy policy may be changed by us. You can always find the current version of the policy on our website www.auction24.cz.

5.2 If written form is required, does that also mean e-mail?

Yes, if these policies require an action to be taken in writing, it can also be done by email.

5.3 From when do these policies apply?

The policies in this version will apply from 25/05/2018.

MCOMM 24 s.r.o.